

22STCV38869 22STCV38869

County: los-angeles

Division: Civil Law and Motion

Department: 534

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Case Number: 22STCV38869 Hearing Date: June 25, 2026 Dept: 534

Background

On December 14, 2022, Plaintiff Oswaldo Sorto filed 22STCV38869 action against Defendant Los Angeles County Metropolitan Transportation Authority ("LACMTA") arising out of an alleged motor vehicle collision between Plaintiff's vehicle and a bus operated by Defendant. The First Amended Complaint, filed April 7, 2023, alleges the collision occurred at 7:00 A.M. on March 29, 2022 on West Adams Boulevard.

On May 10, 2023, Patricia Ann Smith filed 23STCV10475 Smith v. LACMTA arising out of an alleged motor vehicle collision. The complaint alleges the collision occurred on May 10, 2023 on West Adams Boulevard. (23STCV10475 Compl. ¶ MV-1.) This case is currently pending in Department B of the Van Nuys Courthouse East with trial set for September 8, 2026.

On December 20, 2023, Defendant filed a Notice of Related Case involving 22STCV38869 and 23STCV10475.

On December 21, 2023, Judge Steven A. Ellis issued an order summarily finding the cases were not related within the meaning of California Rules of Court, rule 3.300(a).

On February 5, 2026, the parties submitted a stipulation to relate and consolidate 22STCV38869 and 23STCV10475. In the stipulation, the parties agreed the "actions both arise from the same bus versus multi-vehicle incident which occurred on March 29, 2022, at approximately 7:00 a.m."

On February 17, 2026, Judge Bernie C.

LaForteza declined to relate the cases pursuant to the parties' stipulation and noting "[t]o the extent the parties seek an order relating the cases, such request shall be directed through the appropriate administrative procedures, including review by the Supervising Civil Judge."

Motion

On May 11, 2026, Defendant filed the instant motion seeking to relate 22STCV38869 and 23STCV10475.

Defendant's request for judicial notice of documents filed in the two cases is GRANTED. (Evid. Code § 452(d).)

The motion is unopposed. (Code Civ. Proc. § 1005.)

Motion
to Relate Cases

Standard

Pursuant to Superior Court of Los Angeles County Local Rules, rule 3.3(f)(3), "[i]n the event that the judge designated under California Rules of Court, rule 3.300(h)(1)(A)(B)(C) to make the decision, does not order related any of the cases set forth in the Notice of Related Cases, any party may file a motion to have the cases related. Department 1 [renumbered as of May 4, 2026, Department 534] shall hear the motion, if the cases are all pending in the Central District or are pending in two or more different districts."

The
Court Shall Relate the Cases at Issue

On December 21, 2023, Judge Steven A. Ellis issued an order declining to relate 22STCV38869 and 23STCV10475. Judge Bernie C. LaForteza declined to relate the cases pursuant to the parties' stipulation on February 17, 2026. The motion is therefore properly before this Court. (SCLAC Local Rules, rule 3.3(f)(3); Cal. R. Ct., rule 3.300(h)(1)(D).)

Cases

are related when they (1) involve the same parties and are based on the same or similar claims, (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact, (3) involve claims against, title to, possession of, or damages to the same property, or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a).)

The

complaint in 23STCV10475 contained a typographical error, alleging the date of injury was the same date the complaint was filed: May 10, 2023. The parties have clarified, via their stipulation and in the instant motion, that the cases arise out of the same motor vehicle collision and will require determinations of substantially the same questions of law and fact regarding the cause of the collision and liability therefor. (Cal. R. Ct. rule 3.300(a)(2).) Because the cases arise from the same collision, they are likely to require a substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a)(4).) Relating cases “allows the trial court to promote efficiency, to avoid duplicative effort, . . . and to minimize the prospect of conflicting results.” (Harris v. Rojas (2021) 66 Cal.App.5th 817, 820.) While the cases were filed several years ago, there has been no motion practice in either case. Having a single judicial officer preside over the cases going forward promotes judicial efficiency and reduces the potential for inconsistent rulings.

The

Court finds 22STCV38869 and 23STCV10475 are related within the meaning of California Rules of Court, rule 3.300(a) and the motion is GRANTED.

Conclusion

Motion

of Defendant Los Angeles County Metropolitan Transportation Authority to Relate Cases is GRANTED.

The

Court relates 22STCV38869 and

23STCV10475 and orders 23STCV10475

reassigned to Department F46 of the Chatsworth Courthouse for all purposes.

All hearings

currently set in 23STCV10475 are

hereby advanced and vacated.

Counsel

for Moving Party is ordered to give notice.